



File No.: EXP202211675

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on October 30, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“that the respondent is responsible for a camera installed on the exterior facade of the access to a property owned by them, facing the public road, without any administrative authorization for it.” Along with the request, documentary evidence of the presence of the camera on the exterior facade of the respondent's property is provided (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 02/11/22 and retrieved on 09/01/23, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was delivered to the address provided in a timely manner, as evidenced by the acknowledgment of receipt in the file.

THIRD: On January 30, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On June 14, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

Consultation of the database of this Agency shows it as "delivered" by the Official Postal and Telegraph Service on 27/06/23.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

First. The facts arise from the complaint dated 30/10/22, which states the following:

“that the respondent is responsible for a camera installed on the exterior facade of the access to a property owned by them, facing the public road, without any administrative authorization for it.”

Along with the request, documentary evidence of the presence of the camera on the exterior facade of the respondent's property is provided (Annex I).

Second. It is established that Mr. B.B.B., with NIF ***NIF.1, is the main responsible for the installation.

Third: The presence of a camera on the exterior facade with clearly poor orientation is established, without the respondent having provided any explanation.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

the Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and the digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the proceedings will be archived.

II

In the present case, the claim dated 30/10/22 is examined, through which the presence of a camera on the exterior facade that may be misaligned affecting the rights of third parties is reported.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the person responsible for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Furthermore, images of public space cannot be obtained with such devices, as this is the exclusive competence of the State Security Forces and Corps, in accordance with the current LO 4/1997, August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a “simulated” camera, it must preferably be oriented towards

private space, as it is considered that such devices may affect the privacy of third parties, who feel intimidated by it under the belief of being subject to permanent recording.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/6

Individuals cannot install devices for obtaining images of public space and/or the transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the area of third parties who may feel intimidated by them, as they affect their free transit area.

III

In accordance with the ample evidence available in the present sanctioning procedure, it is considered that the complained party has an image-capturing device that is misaligned, affecting the rights of third parties.

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that “they shall prescribe after three years” and particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

The known facts constitute an infringement attributable to the complained party for violating the content of Article 5.1 c) of the GDPR, as previously mentioned.

IV

Article 83.5 of the GDPR states the following: “Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).”

When justifying the sanction, it is taken into account that the device(s) are oriented towards public space, which presumes an indeterminate infringement of third-party rights, which could even disproportionately affect their privacy, considering the conduct as gross negligence despite the requests from this agency, which justifies a sanction of €300, a penalty situated at the lower end of the scale for such conduct.

V

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/6

The text of the resolution establishes what the infractions committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Among the measures to be adopted in case of failure to demonstrate the legality of the system, it is noted that this agency may order the withdrawal and/or reorientation of the device in question towards its exclusive property limits.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infraction of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, a fine of €300.

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 10 working days, demonstrate compliance with the following measure:

- To provide a screenshot (date and time) of what is captured with the device subject to the complaint, proceeding to reorient it towards the exclusive area of their property or, failing that, to withdraw it (providing photographic material of before and after).

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXES-BBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed during the enforcement period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

938-010623

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es